



CHAPTER clxxxix.

An Act to confirm a Scheme made under the London A.D. 1905.
Government Act 1899 relating to the Hackney and —
Edmonton Unions. [11th August 1905.]

WHEREAS the Committee of the Privy Council under the
London Government Act 1899 have settled the scheme 62 & 63 Vict.
set forth in the schedule hereto under and in accordance with the c. 14.
provisions of that Act:

And whereas that scheme requires the confirmation of
Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The scheme set out in the schedule hereto shall be and Scheme in
the same is hereby confirmed. schedule
confirmed.

2. This Act may be cited as the London Government Scheme Short title.
(Hackney and Edmonton Unions Adjustment) Confirmation Act
1905.

[Ch. clxxxix.] *London Government Scheme* [5 EDW. 7.]
(*Hackney and Edmonton Unions Adjustment*) *Confirmation*
Act, 1905.

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S C H E D U L E.

SCHEME MADE UNDER THE LONDON GOVERNMENT
ACT 1899.

Hackney and
Edmonton
Unions.

WHEREAS by the London (South Hornsey) Scheme 1900 as from the commencement of the London (South Hornsey) Order in Council 1900 the parish of St. Mary Stoke Newington as altered by that Order and by the borough of Stoke Newington Order in Council 1900 and the parish of South Hornsey as altered by those Orders were united together and for all civil purposes form one parish known as the parish of Stoke Newington and the said Orders for the purposes of the enactments and provisions relating to the relief of the poor and all such other enactments and provisions as relate to the powers duties and expenses of boards of guardians came into operation on the twenty-sixth day of March one thousand nine hundred and one:

And whereas before the said date the parish of South Hornsey formed part of the Edmonton Union and the parish of St. Mary Stoke Newington formed part of the Hackney Union and by the said scheme it was further provided that the parish of South Hornsey should as from the said date cease to form part of the Edmonton Poor Law Union and that the whole parish of Stoke Newington should as from the said date form part of the Hackney Poor Law Union:

And whereas by section fifteen of the London Government Act 1899 (in this Scheme referred to as "the Act") it is enacted that it shall be lawful for Her Majesty in Council to refer to a Committee of the Privy Council the appointment of Commissioners to prepare such schemes as are required for carrying the Act into effect and that the Committee may settle the schemes so prepared:

And whereas by section sixteen of the Act it is enacted that a scheme under the Act may make provision for the matters in that section mentioned and amongst other things—

- (a) for anything which may be done with respect to a parish by an Order under section fifty-seven of the Local Government Act 1888; and
- (b) for such adjustments as may be required for carrying into effect any of the provisions of the Act or for preventing any injustice with respect to the incidence of any rate or the discharge of any liability or otherwise; and
- (c) for carrying into effect the Act or any Order in Council made thereunder;

and may contain any incidental consequential or supplemental provisions which may appear to be necessary or proper for the purposes of the Scheme:

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And whereas by section five of the London (Financial Arrangements) Scheme 1900 it is provided that where any adjustment (other than such an adjustment as is in that section mentioned) is required for the purposes of the Act or of any Order or Scheme or other thing made or done under the Act the authorities interested may within the period therein mentioned make agreements for the purpose and may thereby adjust any property income debts liabilities and expenses so far as affected by the Act or any such Order Scheme or thing of the parties to the agreement or of their predecessors and that any such agreement may provide for the transfer or retention of any property debts or liabilities with or without any conditions and for payment by any party to the agreement in respect of property debts and liabilities so transferred or retained and that either by way of an annual payment or by way of a capital sum or of a terminable annuity and that any such agreement shall be valid only if and so far as it is confirmed by a scheme under the Act and that any such scheme may confirm the agreement either with or without modifications and that in default of an agreement being so made and confirmed such adjustment (if any) as may be deemed by the Commissioners to be required between the authorities shall be settled by a scheme under the Act :

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—

And whereas the Guardians of the Hackney Union have agreed with the Guardians of the Edmonton Union that the balance held by the Guardians of the Edmonton Union in favour of the Parish of South Hornsey at the said date amounted to three hundred and fifty pounds eighteen shillings and one penny and that the share attributable to South Hornsey in the balance of current liabilities of the Guardians of the Edmonton Union after deducting debts due to the Guardians at the said date amounted to one hundred and sixty-eight pounds and the Guardians of the said Unions have entered into the agreement set forth in the First Schedule to this Scheme but save as aforesaid the Guardians of the said unions have failed to make any such agreement as is mentioned in the London (Financial Arrangements) Scheme 1900 :

And whereas it appears to the Commissioners that the value of the properties belonging to the Guardians of the Edmonton Union at the said date after deducting the liabilities then outstanding and incurred in respect of those properties was one hundred and thirteen thousand and four hundred pounds and that the share of that amount to which the parish of South Hornsey was at that date entitled was seven thousand five hundred and sixty pounds :

And whereas the officers mentioned in Part I. of the Second Schedule to this Scheme were at the said date in receipt of the superannuation allowances mentioned in the second column of that schedule and the shares of those superannuation allowances attributable to South Hornsey on the basis of rateable value at that date are those set forth in the third column of that schedule :

And whereas in the event of a superannuation allowance having become or becoming payable by the Guardians of the Edmonton Union to an

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A.D. 1905. officer mentioned in Part II. of the Second Schedule to this Scheme the share attributable to South Hornsey on the basis of rateable value in respect of the period of service before the said date is that specified with respect to the officer in that schedule :

And whereas the Commissioners appointed by the said Committee of the Privy Council have determined that such adjustment as is contained in this Scheme is required between the Guardians of the Hackney Union and the Guardians of the Edmonton Union and have for that purpose prepared a Scheme containing the provisions hereinafter set forth :

Now therefore pursuant to the Act and every other power enabling them in that behalf the said Committee of the Privy Council have settled a Scheme containing the provisions herein and do hereby direct order and declare as follows :—

Adjustment
between the
Guardians.

1.—(1) All property belonging to the Guardians of the Edmonton Union immediately before the twenty-sixth day of March one thousand nine hundred and one and all liabilities incurred by those Guardians before that date shall remain the property and liabilities of those Guardians.

(2) The Guardians of the Edmonton Union shall pay to the Guardians of the Hackney Union the sum of one hundred and eighty-two pounds eighteen shillings and one penny being the difference between the said sums of three hundred and fifty pounds eighteen shillings and one penny and one hundred and sixty-eight pounds.

(3) By way of adjustment of all properties and liabilities between the Guardians of the Hackney Union and the Guardians of the Edmonton Union the Guardians of the Edmonton Union shall pay to the Guardians of the Hackney Union a capital sum of seven thousand five hundred and sixty pounds.

(4) If the Guardians of the Edmonton Union borrow for the purpose of paying the said capital sum the period within which the sum so borrowed shall be repaid shall be thirty years.

Confirmation
of agree-
ment.

2. The agreement set forth in the First Schedule to this Scheme is hereby confirmed.

Superannua-
tion allow-
ances.

3.—(1) The Guardians of the Hackney Union shall so long as any superannuation allowance mentioned in Part I. of the Second Schedule to this Scheme continues payable to any officer mentioned in that schedule repay to the Guardians of the Edmonton Union in respect of each year since the twenty-fifth day of March one thousand nine hundred and one the sum specified with respect to the officer in the third column of that schedule.

(2) In the event of a superannuation allowance having become or becoming payable by the Guardians of the Edmonton Union to an officer mentioned in Part II. of the Second Schedule to this Scheme the Guardians of the Hackney Union shall so long as the superannuation allowance continues so payable repay to those Guardians in respect of each year after the allowance became or becomes so payable the sum specified with respect to the officer in that schedule.

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(3) Any sum repayable by the Guardians of the Hackney Union to the Guardians of the Edmonton Union in respect of any superannuation allowance shall be paid within one month after the expiration of every year in which the superannuation allowance has been paid by the Guardians of the Edmonton Union except that all sums repayable in respect of superannuation allowances paid before the confirmation of this Scheme shall be paid within one month of the date of the confirmation thereof.

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4.—(1) This Scheme may be cited as the Hackney and Edmonton Unions (Adjustment) Scheme 1905.

Short title construction and effect.

(2) The Interpretation Act 1889 applies for the purpose of the interpretation of this Scheme as it applies to an Act of Parliament.

(3) This Scheme shall have effect subject to the provisions of any future Scheme made under the Act.

FIRST SCHEDULE.

AGREEMENT AS TO INSPECTION OF DOCUMENTS.

The Hackney Union shall have inspection of the books of the Edmonton Union so far as they relate to the late South Hornsey parish and its paupers for the purposes of maintenance and settlement and irremovability questions and may by leave of the Local Government Board have such inspection as to any other matters relating to Poor Law questions which may arise in which information contained in the books of the Edmonton Union may in the opinion of the Local Government Board at any time be reasonably required.

SECOND SCHEDULE.

PART I.

Name of Officer.	Superannuation Allowance Payable.	South Hornsey's Share.
	£ s. d.	£ s. d.
T. Carter	36 0 0	1 18 6
C. Tye	120 0 0	6 8 5
E. J. Everdell	118 0 0	6 6 4
J. Everdell	77 0 0	4 2 5
G. Rutland	78 18 0	4 4 5
F. J. Potter	310 11 9	16 12 6
T. B. Busby	20 6 10	1 1 9
J. Collyer	40 0 0	2 2 9

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PART II.

Name of Officer.	South Hornsey's Share of Superannuation Allowance.	Name of Officer.	South Hornsey's Share of Superannuation Allowance.
	£ s. d.		£ s. d.
F. Shelton - - -	26 6 10	I. Menzies - - -	0 1 3
W. H. Whitmore - - -	4 18 5	E. Stanton - - -	1 6 4
W. B. Rutherford - - -	2 15 0	S. Altham - - -	0 10 0
J. H. Judd - - -	4 18 1	L. Cole - - -	0 13 8
W. J. Matthews - - -	1 13 10	E. Heasman - - -	0 3 5
J. G. Randall - - -	2 1 3	E. Livock - - -	6 4 10
A. G. Cook - - -	0 12 6	S. W. Livock - - -	2 17 9
W. Lowman - - -	4 8 1	A. Jones - - -	0 3 2
J. Graville - - -	0 5 0	J. K. Boyd - - -	0 6 0
W. W. Dew - - -	4 8 7	E. M. Beale - - -	2 9 3
H. J. Roynon - - -	0 5 0	A. Way - - -	0 18 4
W. Inus - - -	0 1 8	W. Styles - - -	0 11 5
S. Fraser - - -	0 1 5	M. G. Cowley - - -	0 8 9
J. W. Jackson - - -	0 4 3	J. W. Evans - - -	1 2 10
W. H. Plaister - - -	0 8 0	W. Evans - - -	0 11 8
E. R. Hutton - - -	0 5 3	W. Moore - - -	1 3 4
W. Millar - - -	0 5 3	F. White - - -	0 8 4
W. E. Porter - - -	0 12 11	D. Cannon - - -	0 3 6
F. Orton - - -	1 14 9	E. Allison - - -	0 1 3
G. Fletcher - - -	0 10 7	C. Dempsey - - -	0 0 10
F. Agar - - -	1 9 2	F. J. Thorne - - -	0 6 1
T. Thyne - - -	0 3 8	T. Rowe - - -	1 0 0
H. V. Jackson - - -	0 3 6	A. Hall - - -	0 2 0
J. D. Priest - - -	1 12 10	A. Pugsley - - -	0 0 11
W. F. Clark - - -	0 10 8	W. Weller - - -	0 13 11
W. D. Benjafield - - -	1 18 0	J. Taylor - - -	0 3 7
R. I. Gardner - - -	0 8 11	B. L. Ville - - -	0 14 6
P. H. Kilduff - - -	4 16 4	M. Sanders - - -	0 10 11
J. Graham - - -	4 0 3	L. E. Morris - - -	0 2 7
E. A. Graham - - -	2 13 6	A. Milton - - -	0 3 5
H. Malyon - - -	0 8 6	W. Barry - - -	0 16 11
F. Graville - - -	0 5 5	A. Shirvell - - -	0 7 5
M. S. Hill - - -	1 14 3	R. Kelf - - -	0 1 7
J. Schröder - - -	1 3 1	C. E. Graveney - - -	0 11 5
R. F. Piggott - - -	0 19 5	A. Graveney - - -	0 1 0
L. Piggott - - -	0 10 6	E. Barker - - -	0 2 1
L. T. Bavington - - -	0 2 5	E. Seagrove - - -	0 3 9
T. Chapman - - -	0 1 2	M. A. Evans - - -	0 5 8
A. Franklin - - -	1 11 2	F. Williams - - -	0 15 5
E. Watts - - -	0 8 0	A. Edwards - - -	0 1 4
T. Berry - - -	0 11 7	A. Castle - - -	0 0 7
A. Beckwith - - -	1 18 11	E. Rawlings - - -	0 0 11
H. Marshall - - -	0 16 8	E. Bradford - - -	0 0 11
C. Wormsley - - -	0 2 7	S. Rowland - - -	0 5 0
E. Chamberlain - - -	1 0 10	S. Clements - - -	0 9 11
E. Hansford - - -	0 1 0	E. H. Crusha - - -	10 10 2
W. Livock - - -	3 6 7	J. C. Howie - - -	1 8 10
A. H. Livock - - -	2 1 2	J. Cornell - - -	5 12 11
G. Field - - -	1 15 3	J. Collyer - - -	4 12 9
F. Human - - -	0 1 2		

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